

The Provisioning of Funds to State Governments for Short Supply of Foodgrains Rules, 2014

Source: <https://indiankanoon.org/doc/172222042/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[\[Cites](#)

[0](#)

[, Cited by](#)

[0](#)

[\]](#)

[Union of India - Act](#)

[The Provisioning of Funds to State Governments for Short Supply of Foodgrains Rules, 2014](#)

[UNION OF INDIA](#)

[India](#)

[The Provisioning of Funds to State Governments for Short Supply of Foodgrains Rules, 2014](#)

[Rule](#)

[THE-PROVISIONING-OF-FUNDS-TO-STATE-GOVERNMENTS-FOR-SHORT-SUPPLY-OF-FOODGRAINS-RULES-2014 of 2014](#)

[Published on 27 October 2014](#)

[Commenced on 27 October 2014](#)

[\[This is the version of this document from 27 October 2014.\]](#)

[\[Note: The original publication document is not available and this content could not be verified.\]](#)

[The Provisioning of Funds to State Governments for Short Supply of Foodgrains Rules, 2014](#)

[Published vide Notification No. G.S.R. 743\(E\), dated 27th October, 2014](#)

[Ministry of Consumer Affairs, Food and Public Distribution](#)

[\(Department of Food and Public Distribution\)](#)

[G.S.R. 743\(E\). - In exercise of the powers conferred by clause \(f\) of sub-section \(2\) of Section 39 read with section 23 of the National Food Security Act, 2013 \(20 of 2013](#)

), the Central Government, in consultation with the State Governments, hereby makes the following rules, namely :-

1.

Short title and commencement.

(1)

These rules may be called the Provisioning of Funds to State Governments for Short Supply of Foodgrains Rules, 2014.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

- In these rules, unless the context otherwise requires, -

(a)

"Act" means the National Food Security Act, 2013 (

20 of 2013

);

(b)

"Corporation" means the Food Corporation of India established under Section 3 of the Food Corporation Act, 1964 (

37 of 1964

);

(c)

"entitled quantity of foodgrains" means the quantity of foodgrains to be allocated by the Central Government to the State Governments in accordance with Section 22 of the Act;

(d)

words and expressions used but not defined in these rules shall have the meanings respectively assigned to them in the Act.

3.

Time limit for allocation of foodgrains.

- The Central Government and the State Governments shall adhere to the time limit specified in the Public Distribution System (Control) Order, 2001 for allocation of foodgrains and making them available for distribution to the persons entitled under the Act.

4.

Allocation and supply of foodgrains by Central Government to State Governments.

- The Central Government shall ensure that the entitled quantity of foodgrains is allocated from the central pool to the State Governments under the Targeted Public Distribution System and the regular supply of the allocated foodgrains reach the depots designated by the Central Government in each State.

5.

Manner of providing funds by Central Government.

- If the Central Government is unable to supply the required quantity of foodgrains to any State Government, it shall provide funds to the extent of short supply to that State Government, at the rate of difference between 1.25 times the minimum support price of the relevant foodgrains for that marketing season and the prices specified in Schedule I to the Act.

6.

Funds to be provided in case of alternative arrangements by State Governments.

(1)

If the entitled quantity of foodgrains is not made available by the Central Government to any State Government, then that State Government may, to the extent of the short supply, make arrangements to deliver the entitlements under Chapter II of the Act through purchases from the open market.

(2)

In case of purchase from the open market under sub-rule (1), the Central Government shall provide funds to the State Government to the extent of short supply of foodgrains at the rate of difference between-

(i)

the price at which the State Government has purchased the foodgrains and the prices specified in Schedule I to the Act;

or

(ii)

1.25 times the minimum support price of the relevant foodgrains for that marketing season and the prices specified in Schedule I to the Act, whichever is lower.

7.

Procedure for claiming funds by State Governments.

- In making claim for funds under rules 5 and 6, the State Government shall submit the claim to the Central Government along with all particulars indicating the following, namely :-

(i)

quantity of short supply;

(ii)

designated depot where short supply has occurred;

(iii)

period of short supply;

(iv)

proof of purchase of foodgrains from open market by the State Government, to deal with the short supply of foodgrains; and

(v)

other necessary documents as may be considered necessary to establish the claim.

8.

Processing of claim by Central Government.

(1)

The Central Government shall forward the claims of the State Government received under rule 7 to the Corporation within fifteen days from the date of receipt of claim by it.

(2)

The Corporation shall, after processing the claim of the State Government, send its observations to the Central Government within fifteen days from the date of receipt of the claim forwarded by the Central Government.

(3)

After examination of the observations of the Corporation, the Central Government shall take a decision on the determination of claim within fifteen days from the date of receipt of observations made by the Corporation.

(4)

The Central Government shall disburse the amount determined under sub-rule (3) to the State Government within fifteen days from the date of determination of the claim.

Related AI tags, queries and research notes

Translation